CHAPTER 50 National Commission for BCs

ESTABLISHMENT

In the Mandal case[1] judgement (1992), the Supreme Court directed the central government to constitute a permanent statutory body to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of backward classes. Accordingly, the National Commission for Backward Classes (NCBC) was set up in 1993[2].

Later, the 102nd Amendment Act of 2018 conferred a constitutional status on the Commission. For this purpose, the amendment inserted a new Article 338-B in the constitution. Hence, the Commission ceased to be a statutory body and became a constitutional body[3].

Further, the scope of functions assigned to the Commission is also enlarged under the new dispensation. This was done in order to safeguard the interests of the socially and educationally backward classes more effectively[4]. In other words, the constitutional status of the new Commission is at par with the National Commission for Scheduled Castes (NCSC) and the National Commission for Scheduled Tribes (NCST).

The Commission consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his/her hand and seal. Their conditions of service and tenure of office are also determined by the President. Under the Rules[5] made by the President, they hold office for a term of three years. They are not eligible for appointment for more than two terms.

FUNCTIONS

The functions of the Commission are the following:

1. To investigate and monitor all matters relating to the constitutional and other legal safeguards for the socially and educationally backward classes and to evaluate their work.
2. To inquire into specific complaints with respect to the deprivation of rights and safeguards of the socially and educationally backward classes.
3. To participate and advise on the socio-economic development of the socially and educationally backward classes and to evaluate the progress of their development under the Union or a state.
4. To present to the President, annually and at such other times as it may deem fit, reports upon the working of those safeguards.
5. To make recommendations as to the measures that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the socially and educationally backward classes.
6. To discharge such other functions in relation to the protection, welfare, development and advancement of the socially and educationally backward classes as the President may specify.

REPORT